



Maritime &
Coastguard
Agency

Guidance

MGN 619 (F) Amendment 2: The application of the lifting operations and lifting equipment regulations 2006 (LOLER) and provision and use of work equipment regulations 2006 (PUWER) to fishing vessels.

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Summary

This notice is intended to provide guidance to fishing vessel owners, employers, skippers and share fishermen on the application of the merchant shipping and fishing vessels (provision and use of work equipment) regulations 2006 (PUWER) (<https://www.legislation.gov.uk/uksi/2006/2183/contents>) and the merchant shipping and fishing vessels (lifting operations and lifting equipment) regulations 2006 (LOLER) (<https://www.legislation.gov.uk/uksi/2006/2184/contents>) to typical work equipment found on fishing vessels.

Following this guidance is not compulsory and you are free to take other action. But if you do follow the guidance you will normally be doing enough to comply with the law. The Fishing Industry Safety Group (FISG) was consulted in the preparation of this guidance.

Amendment 2 updates references only.

1. Introduction

1.1 The fishing vessel owner and any employer of the fishermen have a duty to ensure the health and safety of anyone working on their fishing vessel, and anyone affected by their undertaking – for example, anyone on the quayside when the fish is being unloaded.

This includes;

- ensuring that equipment on the vessel is fit for purpose and safe to use;
- having a maintenance and inspection regime to ensure that it remains in a safe condition; and
- having a system to ensure that the maintenance inspection regime is being followed.

1.2 The skipper is responsible for ensuring that the maintenance and inspection regime is carried out and safe procedures for use of equipment are followed.

1.3 Individual fishermen are responsible for complying with on board procedures, following the orders of the skipper and reporting any defect that they notice.

1.4 Work equipment not owned by the fishing vessel owner but being used on the vessel for a work activity, for example a borrowed pot hauler, is also covered and it is the responsibility of the owner of the vessel where it is being used to ensure that it complies with all legal requirements.

2. Competent person

2.1 “Competent person” means a person possessing the knowledge or experience necessary for the performance of the duties under these Regulations.

2.2 The Regulations require that a competent person carries out inspection, thorough examination and testing and determining the frequency of thorough examination. The level of competence required for each of these duties should be determined by risk assessment taking into account the complexity of the equipment. It should not be assumed that

possession of a certificate of competency automatically means that person is a “competent person” for every duty under these regulations. The competent person in each case could be the skipper or a crew member or a shore-based person with the appropriate knowledge or experience. However, in respect of inspection and testing, the competent person should be sufficiently independent and impartial to allow objective decisions to be made.

3. General

3.1 All tools, machinery and equipment used at work (‘work equipment’) are covered by the requirements of PUWER. This includes everything from a trawl winch to a gutting knife.

3.2 Work equipment which is also lifting equipment is subject to PUWER and will additionally be subject to the requirements of LOLER.

3.3 The provision of both PUWER and LOLER are applicable to self-employed share fishermen on fishing vessels in respect of their own activities or any equipment supplied by them for use of other persons.

3.4 PUWER requires that work equipment is suitable for the work to be carried out, or is properly adapted for that purpose, and may be used by workers without impairment to their health or safety. Modern equipment which is UKCA or CE marked should be accompanied by an instruction manual which contains information on the normal conditions of use of the equipment. Advice should always be sought from manufacturers and/or suppliers where work equipment is to be used for tasks for which it was not designed and tested.

3.5 For LOLER to apply the principal function of the work equipment should be ‘to lift a load’. Winches or similar equipment used only for hauling loads “horizontally” would not attract the application of LOLER but would be subject to PUWER. If such winches etc are also used for lifting then LOLER will also apply.

3.6 Fishing vessels themselves are not work equipment, but where parts of the vessel are a part of, or support lifting equipment, LOLER will apply to them in as much as their suitability to support the lifting equipment and its load must be assessed.

4. Standards of equipment

4.1 The flowchart at annex 1 provides guidance on how appropriate standards should be applied to lifting and hauling equipment on fishing vessels.

5. Periodic inspections

5.1 Risk assessments carried out to meet the requirements of the merchant shipping and fishing vessels (health and safety at work) regulations 1997 should, if carried out properly, identify any significant risks from the use of the work equipment, including that used for lifting.

5.2 Where regular inspection or thorough examination of the equipment would address such risks, e.g. failure of a component through wear, PUWER or LOLER (as appropriate) requires periodic inspections and/or thorough examinations.

5.2.1 PUWER requires that work equipment exposed to conditions causing deterioration liable to result in dangerous situations is inspected at suitable intervals to ensure that the integrity of the equipment is maintained and any deterioration detected and remedied in good time. MCA takes the view that any work equipment fitted on a fishing vessel is subject to conditions causing deterioration, due to the effects of salt water, vibration and movement of the vessel.

5.3 These inspections could be integrated into regular maintenance routines such as greasing etc. so that it is not forgotten.

5.4 Risk assessment should determine whether the work equipment could deteriorate in such a way as to pose a potential risk to operators or other persons.

6. Thorough examinations

6.1 LOLER requires that, where the safety of lifting equipment depends on the installation conditions, it is inspected by a competent person—

- (a) after installation and before being put into service for the first time; or
- (b) after assembly at a new site or in a new location, to ensure that it has been installed correctly, in accordance with any manufacturer's instructions, and is both safe to operate and capable of operating safely. In this context "inspection" means such visual or more rigorous inspection by a competent person and may include testing should this be considered appropriate by the competent person.

6.2 LOLER also requires that where lifting equipment or an accessory for lifting is exposed to conditions causing deterioration, which is liable to result in dangerous situations, it is thoroughly examined by a competent person:

- (1) in the case of lifting equipment for lifting persons or an accessory for lifting at least every 6 months;
- (2) in the case of other lifting equipment, at least every 12 months; or
- (3) in either case, in accordance with a scheme of examination laid down by a competent person.

6.3 MCA takes the view that any lifting equipment fitted on a fishing vessel is subject to conditions causing deterioration, due to the effects of salt water, vibration and movement of the vessel.

6.4 A scheme of examination may set intervals greater or less than those in paragraph (1) or (2) but these intervals should be based on risk assessment taken together with the manufacturer's recommendations or professional expertise of a competent person.

6.4.1 Additionally, a thorough examination is required if the lifting equipment is exposed to 'exceptional circumstances' which are liable to jeopardize the safety of the equipment. In this context "exceptional circumstances" includes modification work, accidents, natural phenomena and prolonged periods of inactivity.

6.5 Recommended intervals for work equipment and lifting equipment specific to a fishing vessel are listed in the table in annex 2.

Checklists are provided at annex 3 (1) and (2).

6.5.1 A completed checklist in the form at annex 3 (or one substantially similar) with a record of any remedial measures taken will generally be considered sufficient evidence of compliance with the LOLER and PUWER regulations in respect of inspection, thorough examination and testing. However, if the MCA surveyor attending the vessel has grounds to

consider that the equipment is not in a safe condition, they may require additional examination or testing or other remedial measures to be undertaken by the owner or by an independent expert.

More information

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